



File No.: EXP202211508

RESOLUTION OF FILE OF PROCEEDINGS

From the actions carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On October 9, 2022, a complaint was filed with registration number REGAGE22e00044914304 with the Spanish Agency for Data Protection against SANITAS, S.A. DE SEGUROS with NIF A28037042 (hereinafter, the complained party). The reasons for the complaint are as follows:

The complainant submits a complaint regarding the receipt of a commercial call on August 1, 2022, at 21:12 hours on their mobile line ***PHONE.1, which is registered in the Robinson List, originating from the calling line ***PHONE.2.

Along with the notification, the following is provided:

- Screenshot of the call from August 1, 2022.
- Recording of the call.
- Telephone contract as the holder of the receiving line.
- Justification of registration in the Robinson List.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to the complained party for analysis and to inform this Agency within one month of the actions taken to comply with the requirements established in the data protection regulations.

The transfer, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was recorded on November 2, 2022, as noted in the acknowledgment of receipt in the file.

On November 7, 2022, a response was received by this Agency indicating that it has been detecting for some time alleged commercial calls, or of another nature, in which, fraudulently, third parties unrelated to this entity impersonate the identity of SANITAS.

It has established a procedure whereby, once notified (through any of the established channels) of such calls, "the procedure enabled for this purpose is activated. This procedure consists of internally verifying that the outgoing phones do not correspond to its own or those of its collaborators"; if this is the case, they proceed to inform the interested party that it is a fraudulent call, advising them to take measures (such as blocking the calls) and report the facts to the police, indicating the phone or phones involved, in order to prevent this practice from continuing.

The calling phone indicated in this complaint was reported to the police on July 29, 2022, and November 11, 2022, as it did not correspond to phones of SANITAS or its collaborators.

THIRD: On December 7, 2022, in accordance with Article 65 of the LOPDGDD, the complaint submitted was admitted for processing.

FOURTH: The General Sub-Directorate of Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the following aspects:

RESULT OF THE INVESTIGATIVE ACTIONS

A search was conducted for the operator of the calling phone number indicated in the complaint in the CNMC Numbering Register, determining the entity that operates that phone number.

A screenshot of the search result was incorporated into the file through a diligence.

Requested on December 15, 2022, and reiterated on January 24, 2023, from the final operator, the holder of the phone number indicated in the complaint, a letter was received by this Agency on February 8, 2023, sent by LEAST COST ROUTING TELECOM, S.L., stating that the holder is: NET VOISS, S.A.C. (Reseller of LCRCOM) with NIF (RUC) 20545529719 and registered office at AV. PETIT THOUARS 1775 of 901 EDIFICIO EL ALMIRANTE, LINCE -LIMA – PERU.

The line is used through SIP trunking connection (Session Initiation Protocol connection that consists of using voice over IP) via a VoIP service (Voice over IP). VoIP technology is the virtual equivalent of a traditional line for businesses, allowing calls to be made over the internet. Through this technology, the telephone service of the line ***PHONE.2 is provided. There is no physical installation at a residence; there is a connection to voice services via the internet of the Subscriber or User so that the voice signal is sent digitally over their IP network.

The contact details of their representative office in Spain:

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TECH TELECOM LEGAL SERVICES, S.L., CALLE ANDRÉS MELLADO, Nº 31, LOCAL 18, C.P. 28015 – MADRID – ESPAÑA.

Attached to this document is the Reseller contract signed between LEAST COST ROUTING TELECOM, S.L. (LCRT) and NET VOISS, S.A.C. dated 30/8/21.

As of today, the line is active and has neither been canceled nor transferred.

The line has neither been ported nor resold.

After reviewing our systems (HEOS/Redmine with code number (...)), we have no record of any call made from the line ***TELÉFONO.2 to the number ***TELÉFONO.1 on 01/08/2022.

In the contract between LCRT and NetVoiss as a reseller (registered with the CNMC since 20/9/21 for the resale of fixed telephony services via indirect access and for the resale of nomadic voice services), it states:

FOURTH. OBLIGATIONS AND PROHIBITIONS OF THE RESELLER.

Among others, the obligations and prohibitions of the RESELLER are as follows:

4.3. Comply with and ensure compliance by its employees, workers, commercial agents, distributors, collaborators, and CLIENTS with the applicable current legislation related to the activity that constitutes its corporate purpose and, in particular, the regulations:

4.3.1. Regarding the provision of ELECTRONIC COMMUNICATION SERVICES and, especially, the CHARTER OF RIGHTS OF USERS OF ELECTRONIC COMMUNICATIONS and THE CODE OF CONDUCT related to INTELLIGENT NETWORK services of ADDITIONAL CHARGING.

4.3.2. Regarding consumer and user protection.

4.3.3. Regarding the protection of personal data.

FIFTH. OBLIGATIONS OF THE CLIENT OF THE RESELLER OR THIRD PARTY SUBSCRIBER TO LCRCOM SERVICES

In the contractual regulation between the Reseller and its client or Subscriber to LCRCOM services, at least the following terms will be established, which are legally mandatory in the field of Telecommunications and/or electronic communications services:

5.1. As a Subscriber or user of electronic communications services

5.1.1. "VoIP Services (nomadic voice services) through the assigned geographic numbering"

The subscriber must have a legal address within the geographic scope of the contracted numbering, being necessary to prove it to the Reseller - so that they can justify it at the request of the Operator - as a requirement for contracting the service; based on the "Resolution of June 30, 2005, of the SETSI, which assigns public numbering resources to the fixed public telephone service and to nomadic voice services, and awards certain provincial codes": Point 8 "Requirements associated with the provision of nomadic voice services through the assigned numbering" section 1.

5.2. As the Responsible or Manager of the databases used in calls through the contracted numbering, the Subscriber must commit to collect and/or process the data that comprise them, in accordance with the applicable legal requirements.

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Subject to the protection of personal data established in national (Spanish) and European legal regulations, at least concerning

5.2.1.- To carry out commercial communications and/or commercial calls to potential clients, paying special attention to the review of "Commercial Exclusion Lists" (Robinson List: www.listarobinson.es/empresas) or obtaining the explicit and informed consent of the recipients prior to the commercial communication or call (Art. 23 LOPDGDD and Art. 21 LSSIC).

5.2.2.- When the Subscriber is not established in the European Union and offers goods or services to individuals in the European Union, regardless of whether payment is required from them or not; they shall designate in writing a Data Protection Representative who will be established in the same member state of the European Union where the recipients of the communications to whom goods or services are offered are located (Art. 27 GDPR).

5.2.3.- When the Subscriber contracts with third parties that are not established in the European Union, for the purpose of carrying out commercial communications and/or commercial calls to potential clients located in the European Union; such third parties must have a designated Data Protection Representative in writing who will be established in the same member state of the European Union where the recipients to whom goods or services are offered are located (Art. 27 GDPR). The conditions established in the GDPR for the international transfer of data must also be complied with (Art. 44 GDPR).

5.2.4.- In the event that the Subscriber is one of the entities required to designate a Data Protection Officer (Art. 34.1 GDPR), they shall designate a Data Protection Officer (Art. 37.1 GDPR) with the requirements and for the functions legally assigned to them, communicating their designation to the Spanish Data Protection Agency.

5.2.5.- Prior to the processing of personal data, the Subscriber, when acting as the data controller, shall provide the Data Processors (Third parties that process the data on behalf of the Subscriber for the provision of services related to electronic communications) with the Contract of Art. 28 GDPR.

SIXTH. OBLIGATIONS AND PROHIBITIONS OF LCRCOM.

6.2. To provide the RESELLER, under the terms set forth in the eighth condition, access to HEOS, an application for managing CLIENT databases.

6.6. By mandatory application of Article 28.1 of the General Data Protection Regulation (GDPR), to choose only this RESELLER for the processing of personal data of LCR CLIENTS, when the latter offers sufficient guarantees to apply appropriate technical and organizational measures, so that the processing is in accordance with the requirements of the GDPR and the protection of the rights of the LCR CLIENT as the data subject is guaranteed.

6.7. Not to carry out commercial actions or any other type that, directly or indirectly, may be aimed at attracting the CLIENTS of the RESELLER to convert them into LCRCOM's own CLIENTS.

SEVENTH. TRAINING. TRANSMISSION OF LCRCOM'S "KNOW-HOW".

7.1. The correct exercise of the activity of reselling ELECTRONIC COMMUNICATION SERVICES acquired from LCRCOM requires that the RESELLER undergo prior training to learn certain specialized knowledge related to the manner of their marketing, the configuration techniques of their components, and the handling of the HEOS application, owned by

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of LCRCOM, which manages the CLIENTS' databases for the purposes of monitoring the use and/or consumption of the SERVICES, controlling voice and data traffic, accessing call detail records (CDR) and billing.

EIGHTH. ACCESS AND TERMS OF USE OF HEOS.

8.1. The RESELLER declares to be aware that HEOS is a software application owned by LCRCOM that, due to its functionalities, is specifically designed to carry out comprehensive management of all end-user data that, directly from LCRCOM or indirectly through a RESELLER, receive ELECTRONIC

COMMUNICATION SERVICES provided, rendered, supplied, and/or made available by LCRCOM. The data managed by HEOS includes both the personal data of the clients referred to in the first paragraph of this condition 8.1 and the data related to the use and consumption of the ELECTRONIC COMMUNICATION SERVICES. All such data is limited to those that are legally necessary and strategically convenient for the correct and complete management of the provision of the ELECTRONIC COMMUNICATION SERVICES.

8.2. In accordance with the provisions of condition 6.2., LCRCOM will provide the RESELLER access to HEOS so that it can carry out comprehensive management of its own CLIENTS and the SERVICES that, previously acquired from LCRCOM, are to be resold to them. The RESELLER is absolutely prohibited from using HEOS for purposes other than those specified in the first paragraph of this condition 8.2, being responsible for any possible damages that may arise from its breach as well as for any profits that may have resulted from the violation of this prohibition.

8.5. LCRCOM reserves the right to access at any time, through HEOS, the database or files reserved for the RESELLER. The access referred to in the first paragraph of this condition 8.7. may only have the sole and exclusive purpose of conducting purely statistical checks and/or verifying its correct use by the RESELLER, and such access does not grant LCRCOM any other rights.

8.6. The RESELLER acknowledges that HEOS constitutes, for the purposes provided in the current legislation on personal data, a FILE of this nature and, consequently, in relation to it, must comply with all legal obligations that, due to the nature of the FILE, the personal data, and its own activity, it must fulfill. The RESELLER will exclusively assume any consequences that may be imposed by administrative and/or judicial authorities arising from the non-compliance or defective compliance with the obligations that, in relation to the FILE, pertain to it according to the provisions of the legislation on personal data.

TENTH. OWNERSHIP OF CLIENTS. RISK AND VENTURE OF THE RESELLING ACTIVITY.

10.1. The CLIENTS to whom the RESELLER provides, renders, supplies, and/or makes available the ELECTRONIC COMMUNICATION SERVICES previously acquired from LCRCOM will be, solely and exclusively, the property of the RESELLER.

SEVENTEENTH. DURATION AND TERMINATION OF THE CONTRACT.

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17.3. The RESELLER may, unilaterally, terminate this CONTRACT without any prior notice, for serious, repeated, and culpable breach of the obligations assumed by LCRCOM. The RESELLER may also unilaterally terminate the CONTRACT without the need to allege just cause when LCRCOM, during its term, unilaterally increases the prices and rates of the SERVICES sold for subsequent resale, when such increases lack a justifying cause.

In the cases provided for in the first paragraph of this condition 17.3, the RESELLER shall notify LCRCOM of its intention to terminate the contract, stating the relevant causes and detailing the serious, repeated, and culpable breaches on which it bases its decision.

17.4. LCRCOM may, unilaterally, terminate this CONTRACT for the same causes expressed in condition 17.3, considering as immediate causes for termination those that are expressly stated in its provisions and, in particular:

17.4.5. When the RESELLER uses or consents to the use of the SERVICES acquired from LCRCOM for purposes other than resale, for illegal, unlawful, or non-permitted purposes under current regulations.

TWENTIETH. REGULATION OF DATA PROTECTION OF THE RESELLER'S DATABASES

The Reseller, owner of its Databases (hereinafter "DB"), determining the purposes and means of processing the personal data contained therein, is the "Data Controller."

LCRcom, in the course of its service provision, may access or process the personal data that make up the Reseller's DB, processing such personal data on behalf of the Reseller and thus assuming the role of "Data Processor."

Requested on February 9, 2023, from this representative in Spain, a letter dated February 21, 2023, was received at this Agency sent by TECH TELECOM LEGAL SERVICES, S.L., stating that the holder is:

KPF TELEMARKETING PERU SOCIEDAD ANONIMA CERRADA with R.U.C (NIF) 20524841038 and registered office at JR. WASHINGTON NRO. 1206 DPTO. 213 URB. CERCADO DE LIMA, LIMA - LIMA – PERU.

The line ***PHONE.2 is used through SIP trunking connection (Session Initiation Protocol connection that consists of using voice over IP) via a VoIP service (Voice over IP). VoIP technology is the virtual equivalent of a traditional line for businesses, allowing calls to be made over the internet. Through this technology, the telephone service of the line is provided. There is no physical installation at a residence; there is a connection to voice services via the Subscriber's internet so that the voice signal is sent digitally over its IP network.

It provides contact data, an email address, and a contact phone number.

The line has not been canceled or had its ownership changed after August 1, 2022. The line has not been donated or resold before or after August 1, 2022.

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Additional information:

NET VOISS S.A.C. operates as a "Reseller" of telephone lines, authorized by the National Commission of Markets and Competition (CNMC). Attached is the registration of NET VOISS S.A.C. with the CNMC for the resale of telephony.

NET VOISS contracts with Operators for the commercial exploitation of telephone lines for resale to "Subscribers/Users of the telephone line" (Clients of NET VOISS, as is the case here, KPF TELEMARKETING PERU SOCIEDAD ANONIMA CERRADA). The use of the telephone lines is only enjoyed by the "Subscribers" to whom they are resold; therefore, it is these Subscribers who make the calls. NET VOISS S.A.C cannot engage in self-consumption of the lines it contracts with the Operator for resale, meaning it cannot use the lines.

It provides the following attachments:

1. Contract for the provision of IP telephony services signed between NET VOISS S.A.C. and KPF TELEMARKETING PERU SOCIEDAD ANONIMA CERRADA, dated 24/6/22.
2. Registration of NET VOISS S.A.C. with the CNMC for the resale of telephony. Granted on 20/9/21.

In the contract, it states in:

FIFTH CLAUSE. - CONDITIONS OF THE SERVICE:

NETVOISS shall in no case provide the CLIENT with Databases and/or related materials, being expressly excluded from the legal responsibility arising from the use of these (DB) through the IP telephony lines and their assigned geographic numbering made available to the CLIENT.

NINTH CLAUSE. - OBLIGATIONS OF THE CLIENT

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e. Assume full legal responsibility for the Databases of users and/or related materials that it uses for commercial calls.

TENTH CLAUSE. - SUSPENSION AND CUTTING OF THE SERVICE

NETVOISS is authorized to suspend and cut off the service, either partially or totally, for:

a

a. Judicial mandate.

Annex 1. Validity and Economic Conditions of the services

Geographic numbers

Provides a list of numbers starting with (...) including the calling number.

ANNEX 2

Specifications and Additional and/or Complementary Services Contracted

IP Telephony Service:

The service will be delivered by NETVOISS to THE CLIENT in Voice over IP. In case of a special configuration of the service, this must be agreed upon in advance between the parties.

THE CLIENT will send its traffic through the following IP addresses:

Any other IP address not detailed in this annex will not have access to the service, for security reasons.

ANNEX 3

PURCHASE ORDER NO. 034-0002-1 NET- 2022/VoIP

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Requested on February 23, 2023, from this holder by postal means, it was returned on March 9 with the indication of "Moved."

Through a diligence, the current address of this holder is located.

On April 11, 2023, the request was sent to the email address listed in the contract and was confirmed delivered on the same date, without receiving a response.

Requested on April 20, 2023, from this holder by postal means to the current address, there is no response as of the date of this report.

LEGAL GROUNDS

I

Competence

In accordance with the provisions of Article 114.1.b) of Law 11/2022, of June 28, General Telecommunications Law (hereinafter LGTel) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative actions.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

Finally, the fourth additional provision "Procedure in relation to the competencies attributed to the Spanish Agency for Data Protection by other laws" establishes that: "The provisions in Title VIII and its development regulations shall apply to the procedures that the Spanish Agency for Data Protection must process in exercising the competencies attributed to it by other laws."

II

Final provision sixth, section 2, of the LGTel (entry into force)

"The right of end users not to receive unwanted calls for commercial communication purposes as provided in Article 66.1.b) shall come into force within one year from the publication of this law in the 'Official State Gazette.' Until that time, end users of publicly available interpersonal communication services based on numbering may continue to exercise the right to object to receiving unwanted calls for commercial communication purposes made through systems other than those established in Article 66.1.a) and to be informed of this right."

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III

Conclusion

Through the actions carried out by this Agency, it has been determined that the call made from the calling number does not belong to SANITAS or any of its collaborating companies; this number belongs to KPF TELEMARKETING PERU SAC, a company based in Peru that has not responded to the information request made by this Agency. It should be noted that the LGT does not confer the Spanish Agency for Data Protection with competencies over a company located in Peru.

Therefore, based on the information provided in the previous paragraphs, no evidence has been found to substantiate the existence of an infringement within the competency scope of the Spanish Agency for Data Protection.

Thus, in accordance with the aforementioned, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO FILE the present actions.

SECOND: TO NOTIFY this resolution to SANITAS, S.A. DE SEGUROS and to the complainant.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as prescribed by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

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